



BUILDINGS 2025-009 BULLETIN O T C R

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ISSUER: Alan Price, P.E.
Director

Office of Technical Certification & Research

PURPOSE: This Bulletin establishes filing procedures for battery containment enclosures (BCEs) when installed on a public right-of-way or within a tax lot; and clarifies design requirements pertaining to BCEs and the rooms/spaces they are located.

SUBJECT(S): Battery containment enclosure (BCE), e-micromobility battery charging cabinet, lithium-ion battery, and electric micromobility device.

RELATED CODE SECTIONS & RESOURCES:

FC 309.3, UL 1487, UL 4900, ANSI/NEMA 250, UL 50E, Exception 4 of BC 508.1.

I. BACKGROUND

Usage of lithium-ion batteries that power electric micromobility devices is growing in New York City. The New York City Fire Code (FC) Section 309.3 has requirements for storing and charging these batteries. The New York City Construction Codes regulate design and construction of buildings and building systems, including the New York City Electrical Code (EC), which regulates electrical installations and equipment in New York City.

A battery containment enclosure (BCE) is a type of product designed to mitigate the heat, fire, and deflagration hazards. BCEs sometimes incorporate charging technology for lithium-ion batteries.

This Bulletin establishes acceptance and filing procedures for BCEs when they are installed on a public right-of-way or within a tax lot; and clarifies design requirements pertaining to BCEs and the rooms or spaces where they are located.

EXCEPTION: This Bulletin does not apply to micromobility charging equipment with the primary purpose of charging, as these systems are intended to be covered by UL 4900, the Standard for Safety of Micromobility Charging Equipment.

II. DEFINITIONS

Battery Containment Enclosure (BCE). Also known as e-micromobility battery charging cabinet, is a product that encloses and stores lithium-ion cells, batteries, battery packs, and battery-powered devices and is intended to mitigate the heat, fire, and deflagration hazards. A BCE might be used for storage, transport, and/or charging of lithium-ion cells, batteries, battery packs, and/or battery-powered devices.¹

¹ As per Battery Containment Enclosure definition under UL 1487 (UL Standard entitled Battery Containment Enclosures).

III. FILING PROCEDURES FOR BCE INSTALLATIONS

- A. **Public Right-of-Way Installations.** For installations on a public right-of-way (outside the tax lot), an Electrical Permit (EL) shall be filed in the [DOB NOW portal](#) by a New York City licensed electrical contractor, with a project description stating, *Electrical work for (#) battery containment enclosure(s)*. In accordance with [E-Micromobility Battery Charging Equipment and Installation Approval Guide](#) published by the New York City Fire Department's (FDNY), the following supporting documents shall be uploaded to the portal:
1. **DOT Revocable Consent.** A Revocable Consent issued by the New York City Department of Transportation (DOT). Refer to DOT's [Sidewalk E-Bike Battery Swapping and Charging Cabinets 101: How property Owners and Tenants Can Apply](#).
 2. **FDNY LNO for Site Installation.** A Letter of No Objection (LNO) issued by FDNY for the proposed outdoor site installation.
 3. **FDNY LNO or COA for BCE.** An LNO or Certificate of Approval (COA) issued and required by the FDNY for the installed BCE make and model.
 4. **FDNY Notification.** Provide proof that notification has been emailed to FDNY (bfpmicromobility@fdny.nyc.gov). This notification should indicate the exact location, aggregate energy capacity (kWh), the manufacturer's information, contact information for the person responsible for proper maintenance, and any other pertinent information related to each BCE installation.
- B. **Tax Lot Installations.** For installations within the tax lot (indoor or outdoor), the following permits shall be filed in the [DOB NOW portal](#):
- I. **General Construction Permit.** A General Construction Permit (GC) filed by a New York State registered design professional (RDP), with a project description stating, *General construction work for (#) battery containment enclosure(s)*.
 - II. **Electrical Permit.** An EL permit filed by a New York City licensed electrical contractor, with a project description stating, *Electrical work for (#) battery containment enclosure(s)*. Additionally, for every indoor installation, Items 3 and 4 per Section III.A of this bulletin shall be uploaded to the portal; and for every outdoor installation, Items 2, 3, and 4 per Section III.A of this bulletin shall be uploaded to the portal.
 - III. **Other Construction Permits.** The GC permit for the installation of a BCE identified in item 1 above may be filed as an Alteration, or it may be included in the scope of work of a larger project and filed as part of a New Building (NB) or Alteration impacting the Certificate of Occupancy (ALT-CO). Additional permit(s) may be required to cover the entire scope of work (i.e., Mechanical (MS), Sprinkler (SP), etc.).

IV. EQUIPMENT APPROVAL, LISTING, AND CERTIFICATION REQUIREMENTS

Every BCE make and model shall obtain an LNO or COA (Item A or B below) issued by the FDNY. This LNO or COA prescribes design requirements specific to the make and model of the BCE and the room/space in which it is located and includes required equipment listing and certification.

- A. **FDNY COA for BCE.** In accordance with FDNY's [E-Micromobility Battery Charging Equipment and Installation Approval Guide](#), every BCE shall be listed and labeled to UL 1487 (UL Standard entitled *Battery Containment Enclosures*). This listing shall be indicated in the COA issued by the FDNY, and the labeling shall be readily visible on the BCE.

- B. **FDNY LNO for BCE.** For BCEs that received an LNO issued by the FDNY prior to March 1, 2025, were subsequently amended prior to September 1, 2025, and have applications for installation filed prior to September 1, 2025, in accordance with both the FDNY's **E-Micromobility Battery Charging Equipment and Installation Approval Guide** and Section III of this bulletin, the following requirements shall be provided in lieu of the UL 1487 listing:
1. As per EC 110, all electrical devices built into the BCE shall be listed for their intended purpose of utilization by a third-party approved agency. This listing shall be indicated in the LNO. Labeling shall be readily visible on the device.
 2. Every BCE shall be self-certified by the manufacturer or certified by a third-party approved agency with an enclosure type designation in accordance with ANSI/NEMA 250 [ANSI/NEMA Standard entitled *Enclosures for Electrical Equipment (1000 Volts Maximum)*]. These designations shall be based on end-use environmental exposures, and the BCE shall comply with the ANSI/NEMA 250 construction requirements of that enclosure type. The ANSI/NEMA 250 enclosure type designation shall be indicated in the LNO. Labeling shall be placed on the BCE and be readily visible after installation.

V. DESIGN & INSTALLATION REQUIREMENTS

- A. **Fire Code Requirements.** FC 309.3 (entitled *Battery-powered Industrial Trucks, Industrial Equipment and Mobility Devices*) prescribes general design requirements for the room/space in which the BCE is located.
- B. **Building Code Requirements.** The room/space where the BCE is located is considered an electrical equipment room per Exception 4 of Section 508.1 of the New York City Building Code (BC). Such room/space is permitted to be classified as the occupancy within which it is located [i.e., when a BCE room is proposed inside a low-hazard warehouse (S-2 occupancy), such room is permitted to be classified as S-2 occupancy because it is located within the warehouse]. Moreover, when FDNY requirements per Sections IV.A and IV.B of this bulletin impose more restrictive requirements than the New York City Construction Codes (i.e., fire protection systems such as sprinklers and fire alarms, fire area and fire-resistance rating, and ventilation, etc.), the design of the room/space shall follow the more restrictive requirements.
- C. **Electrical Code Requirements.** Installation of electrical wiring and connection shall comply with the New York City Electrical Code (EC).

RESOURCES

- DOB NOW Portal: <https://a810-dobnow.nyc.gov/publish/#/>
- E-Micromobility Battery Charging Equipment and Installation Approval Guide: <https://www.nyc.gov/assets/fdny/downloads/pdf/business/e-micromobility-approval-guide.pdf>
- DOT's Sidewalk E-Bike Battery Swapping and Charging Cabinets 101: <https://www.nyc.gov/html/dot/downloads/pdf/sidewalk-e-bike-battery-swapping-charging-cabinets-101.pdf>
- NYC Fire Code: <https://www.nyc.gov/site/fdny/codes/fire-code/fire-code.page>
- NYC Building Code: <https://www.nyc.gov/site/buildings/codes/2022-construction-codes.page#bldgs>
- NYC Electrical Code: <https://www.nyc.gov/site/buildings/codes/electrical-code.page>